

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00020-CV

EX PARTE C.C., A CHILD

On Appeal from the County Court at Law
Harrison County, Texas
Trial Court No. 5078-J

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

C.C. appeals the juvenile court's summary denial of his application for a writ of habeas corpus. The State responds that we lack jurisdiction over the matter because there was no hearing and the order denying the habeas application does not indicate that it was based on the merits. Because we agree, we dismiss this appeal for want of jurisdiction.

I. Factual and Procedural History

C.C. was born in February 2004. In December 2020, the State filed a petition alleging that he engaged in delinquent conduct in January 2016, when he was eleven years old, by intentionally or knowingly (1) "**caus[ing] the penetration of the vagina of B.W., who was then and there a child younger than 14 years of age, with his sexual organ;**" (2) "**caus[ing] the sexual organ of B.W. . . . to make contact with his mouth;**" (3) "**caus[ing] the sexual organ of B.W. . . . to contact his sexual organ[;]**" and (4) "**unlawfully restrain[ing] B.W.**" *See* TEX. PENAL CODE ANN. § 20.02, § 22.021 (Supp.). On June 11, 2021, the State filed a notice of intent to seek grand jury approval for determinate sentencing for the three counts of aggravated sexual assault of a child.

C.C. turned eighteen in February 2022.[1] On May 9, 2022, after C.C. entered a written stipulation of evidence against him, received written determinate sentencing admonishments, and

[1]Section 51.0412 of the Texas Family Code states,

> The court retains jurisdiction over a person, without regard to the age of the person, who is a respondent in an adjudication proceeding, a disposition proceeding, a proceeding to modify disposition, a proceeding for waiver of jurisdiction and transfer to criminal court under Section 54.02(a) [of the Texas Family Code], or a motion for transfer of determinate sentence probation to an appropriate district court if:

judicially confessed to three counts of aggravated sexual assault of a child and one count of unlawful restraint, the juvenile court adjudicated C.C. guilty of delinquent conduct. A jury trial on the issue of C.C.'s disposition led to a jury finding that C.C.'s punishment should be set at twenty-one years' imprisonment "in the Texas Department of Criminal Justice [(TDCJ)], to begin in the Texas Juvenile Justice Department [(TJJD)]" for each allegation of aggravated sexual assault of a child and eight months' confinement in the TJJD for the unlawful restraint allegation. The juvenile court entered disposition orders of commitment in accordance with the jury's verdicts. On January 27, 2023, when C.C. was eighteen, the juvenile court entered an order transferring C.C. to the TDCJ.

C.C. appealed, raising two points of error, but this Court affirmed the juvenile court's disposition on February 10, 2023. *See In re C.C.*, No. 06-22-00057-CV, 2023 WL 1872368, at *1 (Tex. App.—Texarkana Feb. 10, 2023, pet. denied) (mem. op.). With respect to C.C.'s first point of error related to the juvenile court's lack of a hearing on his motion for new trial, this Court found the issue unpreserved because there was no evidence of proper presentment of the motion for new trial. *Id.* at *2. C.C. filed a petition for review with the Texas Supreme Court, but it was refused.

> (1) the petition or motion was filed while the respondent was younger than [eighteen] or [nineteen] years of age, as applicable;
>
> (2) the proceeding is not complete before the respondent becomes [eighteen] or [nineteen] years of age, as applicable; and
>
> (3) the court enters a finding in the proceeding that the prosecuting attorney exercised due diligence in an attempt to complete the proceeding before the respondent became [eighteen] or [nineteen] years of age, as applicable.

TEX. FAM. CODE ANN. § 51.0412.

On November 25, 2024, C.C. filed an application for a writ of habeas corpus alleging that he was illegally confined in the TDCJ. Specifically, C.C. argued that his trial counsel rendered ineffective assistance by failing to challenge the juvenile court's jurisdiction since C.C. turned eighteen before the juvenile court entered its adjudication and disposition orders. C.C. also argued that his trial counsel failed to present "critical evidence regarding the medical history of complaining witness[,] B.W.," which was "relevant to the disposition of C.C.'s case." The application sought a hearing, as did separate emails to the juvenile court. Without a hearing, the juvenile court denied C.C.'s application in an order that merely states, "On this the 22nd day of January, 2026, the Court, hereby, DENIES the Application for [a] Writ of Habeas Corpus filed by the Juvenile on November 5, 2024." *See* TEX. CODE CRIM. PROC. ANN. art. 11.15 (Supp.).

II. We Lack Jurisdiction Over this Appeal

Article V, Section 8, of the Texas Constitution provides a juvenile with the right to file an application for a writ of habeas corpus. TEX. CONST. art. V, § 8; *see also Ex parte Valle*, 104 S.W.3d 888, 890 (Tex. Crim. App. 2003) (orig. proceeding). "Section 56.01 of the Texas Family Code limits appeals in a juvenile proceeding to certain juvenile court orders, but it 'does not limit a child's right to obtain a writ of habeas corpus.'" *Ex parte R.R.*, No. 05-24-01399-CR, 2025 WL 1425223, at *1 (Tex. App.—Dallas May 15, 2025, pet. denied) (mem. op., not designated for publication) (quoting TEX. FAM. CODE ANN. § 56.01(c), (o)). "It necessarily follows that the right to appeal a ruling on a writ of habeas corpus is likewise not limited by Section 56.01." *Id.* (citing *In re M.P.A.*, 364 S.W.3d 277, 282 n.2 (Tex. 2012)).

"There is, however, no right of appeal from an order in which a juvenile court denies an application for habeas corpus without addressing the merits of any claim in the application." *Id.* (citing *Ex parte Villanueva*, 252 S.W.3d 391, 394–95 (Tex. Crim. App. 2008); *Ex parte A.V.*, 695 S.W.3d 16, 20 (Tex. App.—Eastland 2024, pet. denied)); *see Ex parte Arriola*, No. 06-23-00203-CR, 2023 WL 8270638, at *1 (Tex. App.—Texarkana Nov. 30, 2023, no pet.) (mem. op., not designated for publication) ("If the trial court did not rule on the merits of the application, we lack jurisdiction to consider this appeal.").

"To determine whether the [juvenile] court ruled on the merits of a habeas application—thereby rendering the order appealable—we may review the entire record." *Ex parte R.R.*, 2025 WL 1425223, *1 (citing *Ex parte Bowers*, 36 S.W.3d 926, 927 (Tex. App.—Dallas 2001, pet. ref'd)). Here, the juvenile court's order, entered without a hearing, does not indicate any ruling on the merits. Because nothing shows that the juvenile court made a merits-based decision, "we are without appellate jurisdiction and must dismiss this appeal." *Id.* at *2 (citing *Ex parte Villanueva*, 252 S.W.3d at 394; *Ex parte Herod*, No. 01-15-00494-CR, 2016 WL 1470079, at *4 (Tex. App.—Houston [1st Dist.] Apr. 14, 2016, no pet.) (per curiam) (mem. op., not designated for publication); *Ex parte Paselk*, No. 06-14-00099-CR, 2014 WL 4922981, at *3 (Tex. App.—Texarkana Oct. 1, 2014, pet. ref'd) (mem. op., not designated for publication)); *see Ex parte Z.Q.*, No. 14-21-00243-CV, 2022 WL 16645507, at *2 (Tex. App.—Houston [14th Dist.] Nov. 3, 2022, no pet.) (mem. op.).[2]

[2]We note that an appeal can be treated as a petition for a writ of mandamus under certain circumstances so long as "the party seeking appellate review . . . specifically request[s] that its appeal be treated as a mandamus petition." *Ex parte Garcia*, 683 S.W.3d 467, 473 (Tex. App.—San Antonio 2023, orig. proceeding) (quoting *Hodge v. Kraft*, 490 S.W.3d 510, 516 n.2 (Tex. App.—San Antonio 2015, no pet.). Here, C.C. has made no such request.

III. Conclusion

We dismiss this appeal for want of jurisdiction.

Scott E. Stevens
Chief Justice

Date Submitted: October 20, 2026
Date Decided: November 10, 2026